

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 12, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00984

PASTORE v. GROW INDUSTRIES, LLC

(UNOPPOSED) RESPONDENT’S MOTION TO SET ASIDE DEFAULT

The court intends to grant the unopposed motion. Respondent has demonstrated it had no knowledge of the action, the motion is timely, and the default was not caused by avoidance of service. (Code Civ. Proc., § 473.5, subd. (a), (c).) However, the parties should appear to update the court regarding plaintiff’s notice of conditional settlement, filed August 4, 2026.

No. 25CV01041

JORDON v. ASI CAPITOLA, INC., et al.

DEFENDANT ACCESSIBLE SPACE, INC.’S DEMURRER AND MOTION TO STRIKE COMPLAINT

The demurrer is overruled. Defendant Accessible Space, Inc. has not complied with Cal. Rules of Court, rule 3.1113(b) by including “a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” The demurrer fails to analyze any of the law cited to the facts at issue.

The motion to strike is denied.

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I. BACKGROUND

On March 30, 2026, plaintiff Deborah Wakefield Jordon sued defendants ASI Capitola, Inc. and Accessible Space, Inc. for breach of the implied warranty of habitability, breach of the implied warranty of quiet enjoyment, private nuisance, negligence/constructive eviction, and unfair competition. Plaintiff is a disabled senior citizen who relies on a power wheelchair for mobility and lives at 3245 Clares Street, Unit 112, Capitola, CA in a HUD-assisted apartment. She has lived there since 2017. She expended her own funds to install ADA-approved custom carpet and a smart home electronics system. She has consistently paid rent on time. She contends there are chronic uninhabitable conditions in the unit, including but not limited to, extensive water damage from burst pipes on several occasions, food borne illnesses from faulty refrigerator, electric sparking, mold, laundry conversion to app-based payment which she cannot use, broken ADA-compliant doors, sloping floors, and cracked glass stovetop. These conditions allegedly caused plaintiff injuries, health complications, displacement, higher costs, and pain and suffering (including alleged exacerbation of her bipolar condition, depression, and suicidal ideation). In 2024, the City of Capitola issued a formal notice of violation requiring building permits for repairs, but defendants allegedly ignored it.

Defendant seeks to strike plaintiff's claims for intentional infliction of emotional distress and punitive damages on the ground she has failed to plead specific, clear, and convincing facts demonstrating malice, oppression, or fraud, citing Code of Civil Procedure sections 425.13, 435, and 436. Defendant filed a late amendment of the motion to strike, since it failed to include defendant ASI Capitola, Inc. in its initial service and filing on June 18, 2026. The amendment does not impact the court's ruling on the motion to strike.

II. LEGAL STANDARDS

California Code of Civil Procedure section 436 permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, either by attacking the entire pleading or portions thereof. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394.) The grounds for a motion to strike must appear on the face of the pleadings under attack, or from matter which the court may judicially notice. (Code Civ. Proc., § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements that the defendant is guilty of oppression, fraud or malice. (Code Civ. Proc., § 3294, subd. (a); *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.)

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*College Hospital, Inc., supra*, 8 Cal.4th at

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725.) “As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.”

(*Ibid.*) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

III. DISCUSSION

Plaintiff argues that defendants mischaracterize the complaint since she has not pled any IIED claim; instead, she alleges severe emotional distress related to defendants’ repeated long-standing failures to provide a habitable unit. (Complaint ¶¶ 1-27, 31-34, 37-38, 41-50, Prayer.) She also contends that one of the statutes on which defendants rely (Code of Civil Procedure section 425.13) does not apply to this case since it governs punitive damages related to health care providers. She pleads specific allegations of untenable conditions of which the defendants were aware but affirmatively chose not to repair in a timely manner, exacerbating plaintiff’s suffering. She contends in the habitability context, such conduct qualifies as “malicious” and “oppressive” pursuant to Civil Code section 3294 as confirmed by *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, and supports pleading punitive damages.

The court finds plaintiff’s allegations are sufficient to support a claim for punitive damages because they show defendants intentionally failed to maintain the premises. At this pleading stage, these facts rise to the level of malice, oppression or fraud; they describe affirmative conduct by defendants that was intentional and/or willful.

As in *Stoiber*, punitive damages can be stated against landlords in cases of danger to tenants. The allegations in *Stoiber* included leaking of sewage from the bathroom plumbing, defective and dangerous electrical wiring, structural weaknesses in the walls, deteriorated flooring, falling ceiling, leaking roof, dilapidated doors, and broken windows, as well as the Health Department’s notice to vacate and demolish the subject premises which listed the

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following violations among others: heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, over-fused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (*Stoiber, supra*, 101 Cal.App.3d at 912.) At this stage in the litigation, plaintiff has satisfied the pleading requirements for punitive damages and the motion to strike is denied.

No. 26CV00475

LARSSON v. ESCHEN

DEFENDANT JAMES ESCHEN'S MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is denied.

Self-represented plaintiff April Larsson sued her former attorney, defendant James Eschen, for legal malpractice for allegedly failing to properly handle her creditor claim in a bankruptcy. She alleges Eschen falsely advised her that the mandatory creditors' meeting had been continued, failed to notify her of critical proceedings in the action, abandoned representation without notice, failed to preserve her rights as a creditor, and as a direct result she lost the opportunity to protect her \$72,739.92 judgment against the debtor. Her complaint states causes of action for professional negligence, breach of fiduciary duty, and breach of contract. Defendant filed his answer on April 9, 2026.

On May 1, 2026, defendant filed this motion contending the complaint fails to state essential elements: (1) that the underlying judgment was collectible; (2) that plaintiff would have recovered the judgment absent defendant's conduct, and (3) that defendant's conduct was the proximate cause of the loss.

The court will consider plaintiff's late-filed opposition.

A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint. As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. A trial court's determination of a motion for judgment on the pleadings accepts as true the factual allegations that the plaintiff makes. In addition, it gives them a liberal construction. (Code Civ. Proc., § 438; *Eckler v. Neutragena Corp.* (2015) 238 Cal.App.4th 433, 439; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.)

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The court finds plaintiff has alleged all the elements required for her three claims. The cases cited by defendant go to the proof of her claims at trial, not required elements for pleading. (See *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788; *Wise v. DLA Piper LLP* (2013) 220 Cal.App.4th 1180; *Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336; *DiPalma v. Seldman* (1994) 27 Cal.App.4th 1499; *Viner v. Sweet* (2003) 30 Cal.4th 1232.)

No. 25CV02922

CHEN v. TSE

DEFENDANTS' DEMURRER TO THE FIRST AMENDED VERIFIED COMPLAINT

The demurrers to the first and third causes of action are overruled. The demurrer to the second cause of action is sustained without leave to amend and the demurrer to the fourth cause of action is sustained with leave to amend.

I. FIRST AMENDED COMPLAINT AND DEMURRER

Plaintiffs Chen and Liu filed this verified complaint against defendants for judicial dissolution of a limited liability company, partition of real property, declaratory relief, and accounting. Plaintiffs assert that in 2014 defendant Tse solicited plaintiffs, both then residing in China, to invest in California real estate through an LLC holding company, defendant Transmarinis Re Investment, LLC. (FAC at ¶16.) Plaintiffs invested approximately \$400,000.00 in the LLC and became non-managing members. Chen held an 18% interest and Liu a 7% interest. Defendants Tse and Fok hold 30% and 20% membership interests and are its managing members. (FAC at ¶ 18.) At issue are two properties which the LLC purchased: one in Hayward and another in Ben Lomond. On May 1, 2018, Tse and Fok refinanced the loan secured by the Hayward property with a loan from Chase Bank, taking \$490,000.00 for themselves from the transaction. (FAC at ¶¶ 19-22.) In April of 2025, plaintiff Liu discovered the misconduct. “Plaintiffs only received sporadic cash dividend of about \$150,000.00 but never received any formal accounting or any property report about the conditions of the Hayward and Ben Lomond Properties.” (FAC at ¶ 25.)

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Defendants demur to the first cause of action for dissolution, the second cause of action for partition of real property,¹ the third cause of action for declaratory relief, and the fourth cause of action for accounting

II. LEGAL STANDARDS

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) “For that reason, we ‘assume the truth of the complaint's properly pleaded or implied factual allegations.’ [Citation.] We also ‘consider judicially noticed matters.’ [Citation.] ‘In addition, we give the complaint a reasonable interpretation, and read it in context.’ [Citation.]” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 15 Cal.App.4th 1308, 1315.)

III. DISCUSSION

Plaintiffs object to the meet and confer declaration of Stephen Sherman filed in support of defendants’ demurrer, asserting it contains inadmissible evidence of efforts of the parties to compromise. These objections are overruled. A party is required to file a declaration concerning the parties’ meet and confer efforts before filing a demurrer. (Code of Civ. Proc. § 430.41(a).)

a. First cause of action – Judicial dissolution of LLC

Defendants assert this cause of action fails to state sufficient facts because the allegations do not fulfill the requirements of Corporations Code section 17707.03, subdivision (b).

In connection with this cause of action, the FAC alleges that those in control of the LLC, Tse and Fok, are guilty of or knowingly countenanced fraud, mismanagement, or abuse of authority; that plaintiffs have made demand for cooperation and distribution of profits and accounting but defendants have refused to do so, and continuing the LLC is no longer practicable. Plaintiffs seek a dissolution decree and the appointment of a receiver or liquidating trustee. (FAC at ¶¶ 27-31.)

Corporations Code section 17707.03 provides:

“(a) Pursuant to an action filed by any manager or by any member or members of a limited liability company, a court of competent jurisdiction may decree the dissolution of a limited liability company whenever *any* of the events specified in subdivision (b) occurs. (Emphasis added.)

¹ Plaintiffs do not oppose the demurrer to the second cause of action for partition. So, the demurrer to this cause of action is sustained without leave to amend.

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(b)

(1) It is not reasonably practicable to carry on the business in conformity with the articles of organization or operating agreement.

(2) Dissolution is reasonably necessary for the protection of the rights or interests of the complaining members.

(3) The business of the limited liability company has been abandoned.

(4) The management of the limited liability company is deadlocked or subject to internal dissension.

(5) Those in control of the limited liability company have been guilty of, or have knowingly countenanced, persistent and pervasive fraud, mismanagement, or abuse of authority.”

Defendants argue the FAC fails to allege that continued operation of the LLC is no longer reasonably practicable and that there are no allegations concerning how the LLC was not acting in conformity with the operating agreement.

The demurrer to this cause of action is overruled. The applicable section of the Corporations Code permits any member or manager of an LLC to file for judicial dissolution whenever *any* of the 5 enumerated events are alleged to have occurred. The FAC alleges sufficient facts to support a cause of action under section 17707.03, subdivision (b)(5). Plaintiffs allege they are managing members and those in control [defendants] allegedly refinanced a loan from property owned by the LLC, without plaintiffs’ permission and for defendants’ enrichment. Plaintiffs maintain that Tse and Fok knowingly perpetrated fraud and mismanagement or abuse of their authority. (FAC at ¶¶ 22- 29.) Defendants argue the FAC fails to meet the heightened pleading standard for fraud, but the FAC does not allege a cause of action for fraud so the heightened pleading standard would not apply.

b. Third cause of action – Declaratory relief

Defendants assert this cause of action fails to state sufficient facts because plaintiffs do not cite or attach the LLC operating agreement or written instrument under which they seek their declaration of rights.

Code of Civil Procedure section 1060 provides that “[a]ny person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual

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controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.”

Here, plaintiffs allege an actual controversy exists between the parties as to the rights, obligations, and ownership interests of the LLC and that they seek a judicial determination of each member’s rights and obligations. (FAC at ¶¶ 40-41.) The demurrer to this cause of action is overruled.

c. Fourth cause of action – Accounting

Defendants assert this cause of action is insufficiently pled because it does not cite to or attach the LLC operating agreement to establish the existence and scope of any right to accounting as a minority member of the LLC.

“A cause of action for accounting requires a showing of a relationship between the plaintiff and the defendant, such a fiduciary relationship, that requires an accounting or a showing that the accounts are so complicated they cannot be determined through an ordinary action at law.” (*Fleet v. Bank of America N.A.* (2014) 229 Cal.App.4th 1403, 1413.) “An action for an accounting has two elements: (1) ‘that a relationship exists between the plaintiff and defendant that requires an accounting’ and (2) ‘that some balance is due the plaintiff that can only be ascertained by an accounting.’ [Citations.]” (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869.)

In connection with this cause of action, plaintiffs demand an accounting as to all the expenses of the Hayward and Ben Lomond properties as well as an account for all expenses associated with the properties. (FAC at ¶¶ 45-46.) The Court agrees that this cause of action is insufficiently pled. Plaintiffs do not sufficiently allege a relationship between the parties that requires an accounting. The demurrer to this cause of action is sustained with leave to amend.

IV. CONCLUSION

The demurrer to the first and third causes of action are overruled. The demurrer to the second cause of action is sustained without leave to amend and the demurrer to the fourth cause of action is sustained with leave to amend. Plaintiffs shall file a second amended complaint within 30 days from this hearing date.